

STATE OF NEW YORK

8353--A

Cal. No. 1376

2025-2026 Regular Sessions

IN SENATE

June 4, 2025

Introduced by Sens. SALAZAR, BRISPORT, COONEY, JACKSON, SEPULVEDA -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Crime Victims, Crime and Correction in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Women's Issues -- committee discharged and said bill committed to the Committee on Rules -- ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the correction law, in relation to visitors to correctional facilities who are menstruating, wearing menstrual products or have a contraceptive device

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The correction law is amended by adding a new section 138-c
2 to read as follows:

3 § 138-c. Visitors to correctional facilities; menstrual products and
4 contraceptive devices. No state or local correctional facility shall
5 deny entry or contact-visits to a person visiting an incarcerated indi-
6 vidual at such facility due to the fact that such person is menstruating
7 or has a contraceptive device, or it appears on body scan imaging or
8 alternative screening methods that such person has or is using a
9 menstrual product or contraceptive device, including but not limited to
10 menstrual pads, tampons, menstrual cups, menstrual discs, intrauterine
11 devices, contraceptive implants, and vaginal rings. Such products shall
12 not be required to be removed for entry or contact-visits.

13 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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